

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 06/02/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, and specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L22-02131

CASE NAME: DISCOVER BANK VS. CHRISTOPHER PEANG

*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR ENTERING JUDGMENT
PURSUANT TO DEFENDANT'S DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Plaintiff filed a Motion to set aside a dismissal and enter judgment per CCP 664.4, but the copy of the agreement they provided, attached to the Motion as Exhibit 1, is faded and some sections are hardly legible.

Disposition

Parties to appear in court.

Plaintiff to provide a clean copy of the 664.6 agreement.

2. 9:00 AM CASE NUMBER: L23-00256

CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS.
CALICARCOMOBILE.COM LLC

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR JUDGMENT ON THE PLEADINGS AND OF NONAPPEARANCE
FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY**

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The Motion was timely served by mail on the address for Defendant provided in the motion to be relieved as counsel, filed 11/10/25.

The Motion is unopposed.

On 1/27/26, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 9/24/25, ("Requests for Admission, Set One"), were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Order on the Motion to deem matters admitted, as well as the declaration filed by the Plaintiff on 9/24/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges subrogation, where the underlying claim is that Defendant was negligent in their attempt to detail the vehicle of the insured. The negligence caused damages in the amount of \$24,956.59.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See Order filed 2/13/26, (the "Deemed Admitted Order"). The Court takes judicial notice of

the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$24,956.59.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

3. 9:00 AM CASE NUMBER: L25-00290
CASE NAME: CITIBANK, N.A. VS. RAPHAEL UZOMA
***HEARING ON MOTION IN RE: ENTRY OF JUDGMENT PURSUANT TO STIPULATION**
FILED BY:
TENTATIVE RULING:

Plaintiff filed a Motion on 12/15/25 that was originally scheduled to be heard on 3/3/26. But on 3/3/26, this court found that Plaintiff had not served Defendant with notice of the Motion, and continue the Motion to 6/2/26, 9am.

This court also ordered, on 3/3/26, that Plaintiff must notify Defendant of the 6/2/26 Motion date.

There is no proof that Plaintiff has notified Defendant.

Disposition

This is the second motion appearance where Plaintiff has failed to notify the Defendant.

This Motion will be dropped, and not continued.

Court will file the Order.

4. 9:00 AM CASE NUMBER: L25-01414
CASE NAME: BANK OF AMERICA N.A. VS. JIMMY COBB
***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTIONFOR ORDER THAT**
MATTERS INV. REQUEST FOR ADMISSION OF TRUTHJIMMY L COBB, 'OF FACTS BE DEEMED
ADMITTED
FILED BY: BANK OF AMERICA N.A.